

3.

CASE #	CASE NAME	HEARING NAME
CVRI2600663	VASQUEZ vs MERCEDES-BENZ USA, LLC	DEMURRER ON COMPLAINT

Tentative Ruling:

The hearing on the demurrer is continued to September 21, 2026, at 8:30 a.m.. Defendant is ordered ***to meet and confer by telephone, videoconference or in person*** with Plaintiff for the purpose of determining whether an agreement can be reached that would resolve the objections raised in the demurrer. As part of the meet and confer process, Defendant shall identify with legal support the basis of the alleged deficiencies in the *Complaint*. Plaintiff shall provide legal support for her position that the pleading is legally sufficient or, in the alternative, how the pleading may be amended to cure any legal insufficiency.

After meeting and conferring, Defendant shall 10 days before the continued hearing date set forth above do one of the following:

- (1) vacate the hearing on the demurrer;
- (2) file with the court a declaration stating that the parties have agreed that Plaintiff will file a *first amended complaint* before the date set forth above; or
- (3) file with the court a declaration stating the means by which the parties met and conferred and identifying the specific objections in the demurrer that the parties were unable to resolve. (CCP §430.41(a)(3).)

Moving party is ordered to give notice.

4.

CASE #	CASE NAME	HEARING NAME
CVRI2600973	CISNEROS vs HALLWAY HEALTHCARE, INC	MOTION TO COMPEL ARBITRATION

Tentative Ruling:

Upon the motion of a party to an agreement to arbitrate, the court must grant it unless it finds: no written agreement to arbitrate exists; the right to compel arbitration has been waived; grounds exist for revocation of the agreement; or litigation is pending that may render the arbitration unnecessary or create conflicting rulings on common issues. (CCP § 1281.2.) A proceeding to compel arbitration is in essence a suit in equity to compel specific performance of a contract. (*Freeman v. State Farm Mutual Auto Insurance Co.* (1975) 14 Cal.3d 473, 479.) The motion to compel must set forth the provisions of the written agreement and the arbitration clause verbatim, or such provisions must be attached and incorporated by reference. (CRC 3.1330; see also *Condee v. Longwood Mgmt. Corp.* (2001) 88 Cal.App.4th 215, 218-19.)

“In ruling on a petition to compel arbitration, the trial court may consider evidence on factual issues relating to the threshold issue of arbitrability . . . Parties may submit declarations when factual issues are tendered with a motion to compel arbitration.” (*Engineers & Architects Assn. v. Community Development Dept.* (1994) 30 Cal.App.4th 644, 653.) In the summary proceedings on a motion to compel arbitration, “the trial court sits as a trier of fact, weighing all the affidavits, declarations, and other documentary evidence, as well as oral testimony received at the court’s discretion, to reach a final determination.” (*Engalla v. Permanente Medical Group, Inc.* (1997) 15 Cal.4th 951, 972.)

The evidentiary objections are overruled.

Defendant contends that the Federal Arbitration Act (“FAA”), 9 U.S.C. §§ 1 *et. seq.* applies. The FAA generally governs arbitration in written contracts involving interstate commerce. (9 U.S.C. § 2.) To assure uniform results as to arbitrability of disputes subject to the FAA, conflicting state law is preempted under the Supremacy Clause. (*Southland v. Corp. v. Keating* (1984) 465 U.S. 1, 12.) The party claiming that the FAA applies has the burden of proving that the underlying transaction involved interstate commerce. (*Woolfs v. Sup. Ct.* (2005) 127 Cal.App.4th 197, 211–14.) Furthermore, the FAA applies when an arbitration agreement expressly states that it is governed by the FAA. (*Aviation Data, Inc. v. Am. Express Travel Related Servs. Co., Inc.* (2007) 152 Cal.App.4th 1522, 1534-1535; *Victrola 89, LLC v. Jaman Properties 8 LLC* (2020) 46 Cal.App.5th 337, 355.)

Here, the Agreement itself contains an express factual finding that “the parties agree that Hallway Healthcare is engaged in transactions involving interstate commerce,” and that “this is an agreement to arbitrate under the Federal Arbitration Act (FAA) and that enforceability of this Agreement will be decided in accordance with the FAA” thereby bringing the Agreement squarely within the scope of the FAA. (Ex. A, p. 5.) Plaintiff does not oppose the application of the FAA. Thus, the FAA governs in this case.

Existence of Arbitration Agreement

Defendant contends that the Mutual Arbitration Agreement satisfies all elements of a valid, enforceable contract under California law. First, the Agreement is in writing. Second, Plaintiff Nitzia Cisneros received the Agreement on December 6, 2024, with express notice via the Offer Letter directing her to “carefully review” it before signing. Third, Plaintiff manifested her assent by affixing her electronic signature to the Agreement on December 6, 2024, at 2:06:49 PM EST, nine days before her employment commenced. Her electronic signature is legally binding under the California Uniform Electronic Transactions Act (Cal. Civ. Code § 1633.7), which provides that an electronic signature has the same legal effect as a handwritten signature. Fourth, the Agreement’s terms are sufficiently definite to be enforceable.

In Opposition, Plaintiff contends Defendant failed to prove she personally signed the Agreement because it did not provide a full audit trail, IP address, device identifier, password records, email-delivery records, SMS authentication, or vendor declaration. California law imposes no such rigid requirements for electronic signatures. Civil Code 1633.9(a) provides that an electronic signature is attributable to a person if it was the act of the person, and the act of the person may be shown in any manner, including a showing of the efficacy of any security procedure applied to determine the person to which the electronic record or electronic signature was attributable. An electronic signature has the same legal effect as a handwritten signature. (Civ. Code § 1633.9.) California courts uphold electronic signatures where the employer shows the employee accessed a secure platform, reviewed the agreement, and signed. In *Espejo* the court held that authentication was sufficient where the employer provided detailed evidence of unique username/password security precautions, the steps required to sign, and metadata including date, time, and IP address. (*Espejo v. Southern California Permanente Medical Group* (2016) 246 Cal. App. 4th 104 (2016).) By contrast, in *Ruiz v. Moss Bros. Auto Group, Inc.* (2014) 232 Cal. App. 4th 836 the court held that an employee's name and timestamp on an electronic arbitration agreement were insufficient where the employer failed to explain how the electronic signature was placed on the agreement or how it was attributable to the employee.

Here, Defendant has provided evidence exceeding the deficient showing in *Ruiz*. Tiffany Hall, Hallway Healthcare's Chief Executive Officer, declares Plaintiff received the Offer Letter and Agreement via the Company's electronic onboarding platform on December 6, 2024, nine days before her employment start date. The Offer Letter expressly directed Plaintiff to "carefully review" the enclosed Mutual Arbitration Agreement and required Plaintiff to "sign and date this letter in the space provided below and return it and the enclosed Mutual Arbitration Agreement." On December 6, 2024, at 2:06:49 PM EST, Plaintiff electronically signed and accepted both the Offer Letter and the Mutual Arbitration Agreement. The electronic signature was captured and verified by the Company's onboarding platform under Plaintiff's registered login account, nitziacisneros296@gmail.com. The electronic signature verification page reflects: (1) Offer Status: "Offer Accepted"; (2) Signer Name/Initials: "Nitizia Cisneros"; (3) Login ID: nitziacisneros296@gmail.com; and (4) Date Electronically Signed: December 6, 2024, at 2:06:49 PM EST. The Agreement itself identifies the employee by her full legal name- "Nitizia Cisneros"-on the face of the Agreement. Hall further declares that the documents are kept in the ordinary course of Hallway Healthcare's business. Defendant established Plaintiff received notice, accessed the secure onboarding platform through her registered credentials, reviewed the Agreement, and signed it on a date certain. Importantly, Plaintiff does not deny using ADP, identify forgery, or claim anyone used her credentials; she simply says she does not recall and does not believe she signed.

Plaintiff's lack of memory

Plaintiff claims a lack of memory regarding signing the Agreement, but a plaintiff cannot defeat competent electronic-signature evidence merely by saying she cannot confirm a computer printout or does not remember signing. (*Jyere v. Wise Auto Group* (2023) 87

Cal. App. 5th 747.) Plaintiff's own declaration confirms she completed ADP onboarding remotely from home, used her personal device, and saw the word "arbitration" in the onboarding documents. She does not claim she was locked out, that the platform malfunctioned, or that anyone else used her credentials. Her lack of recollection is not evidence of fraud, forgery, or nonacceptance.

Plaintiff's claim that Defendant has access to her credentials

Plaintiff contends Defendant's HR personnel "provided" or "had access to" her credentials, but this is speculative. Plaintiff does not declare HR told her they had her password, logged into her account, signed for her, or accessed ADP on December 6, 2024. She states only her subjective "understanding" that certain people were involved with credentials. However, such a conclusory statement creates no factual dispute. As noted by Defendant, employers commonly provide initial login credentials. This does not show HR retained access, used Plaintiff's account, or signed for her. Plaintiff offers no evidence that anyone but she accessed the account, reviewed the Agreement, or signed it. Even Plaintiff herself does not make an affirmative claim that anyone else signed for her.

Plaintiff's authority does not support her argument

Plaintiff relies on *Ruiz v. Moss Bros. Auto Group, Inc.* (2014) 232 Cal. App. 4th 836, where the employer offered only a name and timestamp with no explanation tying the signature to the employee. In the present matter, Defendant's CEO, Ms. Hall, explains the onboarding process, the registered login account, the signing event, and the Company's business records; the Offer Letter and verification page independently corroborate the signature.

Plaintiff also relies on *Bannister v. Marinidence Opco, LLC* (2021) 64 Cal.App.5th 541, where the employer failed to show unique private credentials and the evidence showed others had access to information needed for portal access. Here, Plaintiff alleges only a vague "understanding" that HR was involved with credentials, with no evidence and without affirmatively claiming that anyone accessed her account or signed for her.

Procedural Unconscionability

Procedural unconscionability focuses on oppression or surprise due to unequal bargaining power. (*Carmona v. Lincoln Millennium Car Wash, Inc.* (2014) 226 Cal. App. 4th 74, 83.) Oppression arises from an inequality of bargaining power, when one party has no real power to negotiate or a meaningful choice. (*Id.* at 84.) Surprise is the extent to which the provision is hidden in a prolix form. (*Haydon v. Elegance at Dublin* (2023) 97 Cal. App. 21 5th 1280.)

Plaintiff received the Agreement on December 6, 23 2024, nine days before work began, and had ample time to review it, consult counsel, or ask questions. The Offer Letter prominently directed her to "carefully review" the Mutual Arbitration Agreement.

The Agreement is clearly labeled, plainly written, and not hidden. Plaintiff completed onboarding remotely from home on her personal device and had ample opportunity to ask questions or consult counsel.

Plaintiff acknowledges she received and understood numerous onboarding documents, including background check materials, tax forms, policies, scheduling information, meal-break information, vaccine-related materials, and other onboarding items. She also acknowledges seeing the word "arbitration" among those materials. Her ability to recall and identify such a broad range of onboarding documents supports the conclusion that she took time to review the full onboarding package. Her acknowledgement that she saw the word "arbitration" further undermines any claim that the arbitration document was hidden or omitted from the materials provided. Plaintiff argues she was not told the Agreement was optional, negotiable, or subject to attorney review. California law does not require such advisements. Employment arbitration agreements may be adhesive by nature, but adhesion alone does not make them unconscionable; the question is whether Plaintiff had a reasonable opportunity to understand the bargain. (*Serafin v. Balco Properties Ltd., LLC* (2015) 235 Cal. App. 4th 165; *McManus v. CIBC World Markets Corp.* (2003) 109 Cal. App. 4th 76.) She did. Plaintiff had nine days, a plainly labeled agreement, an express instruction to review it carefully, and the ability to complete onboarding at home at her own pace. She had every opportunity to seek legal advice or ask questions. The fact she chose not to do so does not render the Agreement procedurally unconscionable. Nor does Plaintiff's belief onboarding was necessary to secure the job change the analysis. Pre-employment arbitration agreements are often conditions of employment; the relevant issue remains whether Plaintiff had a reasonable opportunity to review and understand the Agreement, which she did.

Substantive Unconscionability

Substantive unconscionability asks whether the terms are overly harsh or one-sided. (*Haydon v. Elegance at Dublin, supra* at 1280.) , The Agreement is mutual: (1) both Hallway Healthcare and Plaintiff must arbitrate covered disputes, and either party may compel arbitration; (2) the Agreement uses JAMS Employment Arbitration Rules, a recognized, reputable arbitration provider which provide neutral arbitrators, adequate discovery, and written awards; (3) Plaintiff pays only the initial filing fee; Defendant bears all remaining arbitrator fees and costs, preserving access to the arbitral forum; (4) the Agreement preserves Plaintiff's substantive statutory rights and remedies, including attorneys' fees where authorized by law; (5) the Agreement does not shorten any statute of limitations; (6) the Agreement carves out workers' compensation, unemployment insurance, state or federal disability insurance, Sarbanes-Oxley whistleblower claims, public injunctive relief, and claims expressly precluded by governing federal law.

Plaintiff argues the confidentiality clause is unconscionable because broad confidentiality may impair witness investigation, increase costs, and hinder statutory enforcement under *Ramos, supra* and *Hasty v. American Automobile Assn. of Northern*

Cal., Nev. & Utah (2023) 98 Cal.App.5th 1041. The clause avoids those concerns. It expressly permits protected concerted activity under the NLRA, including discussions of wages, hours, and terms of employment. The provision expressly permits either party to communicate with witnesses to the extent necessary to assist in arbitrating the proceeding.

Plaintiff argues incorporation of JAMS rules is unconscionable because the rules were not provided. But the Agreement states the rules are available at www.jamsadr.com and that Defendant will provide a copy upon request. California courts have consistently held incorporation of arbitration rules by reference to a publicly available website, with an offer to provide a copy upon request, is not unconscionable. (*Baltazar v. Forever 21, Inc.* (2016) 62 Cal. 4th 1237.)

Plaintiff's challenge to the class, collective, and representative waiver is foreclosed by federal law. The United States Supreme Court held in *Epic Systems Corp. v. Lewis*, 584 U.S. 497 (2018) that the FAA requires enforcement of arbitration agreements containing class and collective action waivers, even in the employment context. The Court rejected the argument that the National Labor Relations Act (NLRA) provides employees with a substantive right to pursue claims on a class or collective basis that would override the FAA. Again, the Agreement expressly provides it is governed by the FAA and that Defendant is engaged in transactions involving interstate commerce. The FAA therefore governs, and Epic Systems requires enforcement of the class and collective action waiver. To the extent Plaintiff argues California's rule prohibiting waivers of representative PAGA claims announced in *Iskanian v. CLS Transportation Los Angeles, LLC* (2014) 59 Cal.4th 348 survives *Epic Systems*, the Agreement addresses that issue. The waiver expressly provides that it applies "[t]o the maximum extent permitted by law." The Agreement further provides that "[a]ny issue concerning the validity, enforceability, or scope of this class action, collective and representative action waiver must be decided by a state or federal court." If the waiver is found unenforceable as to representative PAGA claims, the Agreement provides that such claims "shall be litigated in court."

Plaintiff argues the offer-of-judgment provision is unconscionable because it permits either party to serve an offer and shifts post-offer fees and costs if the final arbitration judgment is not more favorable than the offer. However, the provision is mutual, mirrors Federal Rule of Civil Procedure 68, and applies only to the same extent as if the case were filed in court. Plaintiff cites no authority holding such a provision unconscionable in arbitration.

The motion is granted. All proceedings are taken off calendar pending completion of arbitration, and this civil case is stayed pending arbitration. A Hearing re: completion of arbitration is set for May 6, 2027, at 8:30 a.m., in Department 5.